City and County of San Francisco
Office of Contract Administration
Purchasing Division

First Amendment

THIS AMENDMENT (this "Amendment") is made as of May 31, 2018, in San Francisco, California, by and between **E&C Medical Intelligence DBA Perigen** ("Contractor"), and the City and County of San Francisco, a municipal corporation ("City"), acting by and through its Director of the Office of Contract Administration.

RECITALS

WHEREAS, City and Contractor (as assignee of Hill-Rom Company, Inc.) have entered into the Agreement (as defined below); and

WHEREAS, City and Contractor desire to modify the Agreement on the terms and conditions set forth herein to procure all goods and services required to upgrade the existing WatchChild system to the most current version, virtualize all existing servers, integrate the application to the Department's electronic health record system, increase contract amount and update standard contractual clauses;

NOW, THEREFORE, Contractor and the City agree as follows:

1. Definitions. The following definitions shall apply to this Amendment:

1a. Agreement. The term "Agreement" shall mean the Agreement dated September 1, 2011 between Contractor and City, as assigned by Hill-Rom Company, Inc. to E&C Medical Intelligence DBA Perigen effective September 21, 2016.

1b. Contract Monitoring Division. Contract Monitoring Division. Effective July 28, 2012, with the exception of Sections 14B.9(D) and 14B.17(F), all of the duties and functions of the Human Rights Commission under Chapter 14B of the Administrative Code (LBE Ordinance) were transferred to the City Administrator, Contract Monitoring Division ("CMD"). Wherever "Human Rights Commission" or "HRC" appears in the Agreement in reference to Chapter 14B of the Administrative Code or its implementing Rules and Regulations, it shall be construed to mean "Contract Monitoring Division" or "CMD" respectively.

1c. Other Terms. Terms used and not defined in this Amendment shall have the meanings assigned to such terms in the Agreement.

2. Modifications to the Agreement. The Agreement is hereby modified as follows:

2a. Section 14. Section **14 Payment** of the Agreement currently reads as follows:

14. Payment.
Compensation shall be due and payable within 45 days of the date of invoice by means of Automated Clearing House ("ACH"). In no event shall the amount of this Agreement exceed **ONE MILLION NINE HUNDRED THOUSAND DOLLARS ($1,900,000).** The breakdown of costs associated with this Agreement is provided for in Appendix H and the items to be considered for purchase are shown in the NaviCare WatchChild System Quote # 10084 rev. 2 (See Exhibit I). Customer may purchase the ESA programs as shown in Exhibit H. Customer may also purchase additional "Optional Software and Services" and "Contingency Items" and if so, such items shall be specified at a later date. The price for the IT Solutions Product(s) including (and if applicable) all devices, hardware, equipment, license fees, and Service fees shall not exceed the amount set forth in the SOW and/or related proposal. Unless otherwise stated in the SOW and/or related proposal, City agrees to pay Hill-Rom by ACH forty-five (45) days from the date of invoice. Hill-Rom acknowledges that it must register and complete all necessary steps to enroll in ACH payments before ACH payments can begin. Invoices shall be issued in accordance with the terms of Appendix A, Subsection E (1). No charges shall be incurred under this Agreement nor shall any payments become due to Contractor until Licensed Software, and services required under this Agreement are delivered and invoiced in accordance with the terms of Appendix A. Within thirty (30) days of the Effective Date, Customer shall issue a purchase order to Hill-Rom for immediate delivery of all those items listed under the title "Base System and Enhancements" in Appendix H.

14.1 Site Preparation Delays. Unless otherwise contracted for with Hill-Rom, City is responsible for all site preparation prior to the scheduled installation date. Site preparation includes, but is not limited to, wiring, connections and other physical construction or alteration needed for installation of the IT Solutions Product. In the event the site is not prepared to accept installation of the IT Solutions Product (including but not limited to schedule changes, construction delays not attributable to Hill-Rom or network and/or infrastructure problems), City shall reimburse Hill-Rom for costs, including reasonable travel fees, incurred by Hill-Rom (including its agents and sub-contractors) related thereto and resulting there from.

14.2 Interest on Late Payments. [Omitted]

14.3 Payment Disputes. City shall not be considered in breach of this Master Agreement as a result of failure to pay any fees due but disputed in good faith, and submitted in writing to Hill-Rom. Disputes of any unpaid balances shall be resolved in accordance with the dispute resolution process described in this Agreement.

14.4. Maximum Prices. The prices shown in Exhibit H labeled "Ongoing Estimated Costs" represent maximum, "not to exceed" prices. Hill-Rom's actual charges for Ongoing Estimated Costs may be less. City shall not be obligated to pay more than One Million, Nine-Hundred Thousand Dollars and No Cents ($1,900,000.00) for those items set forth in Exhibit H.

Such section is hereby amended in its entirety to read as follows:

14. Payment.
Compensation shall be due and payable within 45 days of the date of invoice by means of Automated Clearing House ("ACH"). In no event shall the amount of this Agreement exceed **TWO MILLION, ONE HUNDRED THOUSAND DOLLARS ($2,100,000).** The

breakdown of costs associated with this Agreement is provided for in Appendix H and the items to be considered for purchase are shown in the NaviCare WatchChild System Quote # 10084 rev. 2 (See Exhibit I). Customer may purchase the ESA programs as shown in Exhibit H. Customer may also purchase additional "Optional Software and Services" and "Contingency Items" and if so, such items shall be specified at a later date. The price for the IT Solutions Product(s) including (and if applicable) all devices, hardware, equipment, license fees, and Service fees shall not exceed the amount set forth in the SOW and/or related proposal. Unless otherwise stated in the SOW and/or related proposal, City agrees to pay E&C Medical Intelligence by ACH forty-five (45) days from the date of invoice. E&C Medical Intelligence acknowledges that it must register and complete all necessary steps to enroll in ACH payments before ACH payments can begin. Invoices shall be issued in accordance with the terms of Appendix A, Subsection E (1). No charges shall be incurred under this Agreement nor shall any payments become due to Contractor until Licensed Software, and services required under this Agreement are delivered and invoiced in accordance with the terms of Appendix A. Within thirty (30) days of the Effective Date, Customer shall issue a purchase order to E&C Medical Intelligence for immediate delivery of all those items listed under the title "Base System and Enhancements" in Appendix H.

14.1 Site Preparation Delays. Unless otherwise contracted for with E&C Medical Intelligence, City is responsible for all site preparation prior to the scheduled installation date. Site preparation includes, but is not limited to, wiring, connections and other physical construction or alteration needed for installation of the IT Solutions Product. In the event the site is not prepared to accept installation of the IT Solutions Product (including but not limited to schedule changes, construction delays not attributable to E&C Medical Intelligence or network and/or infrastructure problems), City shall reimburse E&C Medical Intelligence for costs, including reasonable travel fees, incurred by E&C Medical Intelligence (including its agents and sub-contractors) related thereto and resulting there from.

14.2 Interest on Late Payments. [Omitted]

14.3 Payment Disputes. City shall not be considered in breach of this Master Agreement as a result of failure to pay any fees due but disputed in good faith, and submitted in writing to E&C Medical Intelligence. Disputes of any unpaid balances shall be resolved in accordance with the dispute resolution process described in this Agreement.

14.4. Maximum Prices. The prices shown in Exhibit H labeled "Ongoing Estimated Costs" represent maximum, "not to exceed" prices. E&C Medical Intelligence actual charges for Ongoing Estimated Costs may be less. City shall not be obligated to pay more than Two Million Dollars and No Cents ($2,100,000.00) for those items set forth in Exhibit H.

2b. Insurance. Section 23 is hereby replaced in its entirety to read as follows:

23. Insurance.

Without in any way limiting Contractor's liability pursuant to the "Indemnification" section of this Agreement, Contractor must maintain in force, during the full term of the Agreement, insurance in the following amounts and coverages (which amounts may be arrived at by adding any excess umbrella policy):

a) Workers' Compensation, in statutory amounts, with Employers' Liability Limits not less than $1,000,000 each accident, injury, or illness; and

b) Commercial General Liability Insurance with limits not less than $5,000,000 each occurrence for Bodily Injury and Property Damage, including Contractual Liability, Personal Injury, Products and Completed Operations; and

c) Commercial Automobile Liability Insurance with limits not less than $1,000,000 each occurrence, "Combined Single Limit" for Bodily Injury and Property Damage, including Non-Owned and Hired auto coverage, as applicable.

d) Technology Errors and Omissions Liability coverage, with limits of $2,000,000 each occurrence and each loss. The policy shall at a minimum cover professional misconduct or lack of the requisite skill required for the performance of services defined in the contract and shall also provide coverage for the following risks:

   i. Network security liability arising from the unauthorized access to, use of, or tampering with computers or computer systems, including hacker attacks; and

   ii. Liability arising from the introduction of any form of malicious software including computer viruses into, or otherwise causing damage to the City's or third person's computer, computer system, network, or similar computer related property and the data, software, and programs thereon.

   Contractor shall maintain in force during the full life of the agreement Cyber and Privacy Insurance with limits of not less than $5,000,000 per occurrence. Such insurance shall include coverage for liability arising from theft, dissemination, and/or use of confidential information, including but not limited to, bank and credit card account information or personal information, such as name, address, social security numbers, protected health information or other personally identifying information, stored or transmitted in electronic form.

e) Commercial General Liability and Commercial Automobile Liability Insurance policies must be endorsed to provide:

   1) Name as Additional Insured the City and County of San Francisco, its Officers, Agents, and Employees.

   2) That such policies are primary insurance to any other insurance available to the Additional Insureds, with respect to any claims arising out of this Agreement, and that insurance applies separately to each insured against whom claim is made or suit is brought.

f) Thirty (30) days' advance written notice shall be provided to the City of cancellation, intended non-renewal, or reduction in coverages, except for non-payment for which no less than ten (10) days' notice shall be provided to City. Notices shall be sent to the City address set forth in Section 31 entitled "Notices to the Parties."

g) Should any of the required insurance be provided under a claims-made form, Contractor shall maintain such coverage continuously throughout the term of this Agreement and, without lapse, for a period of three years beyond the expiration of this Agreement, to the effect that, should occurrences during the contract term give rise to claims made after expiration of the Agreement, such claims shall be covered by such claims-made policies.

h) Should any required insurance lapse during the term of this Agreement, requests for payments originating after such lapse shall not be processed until the City receives satisfactory evidence of reinstated coverage as required by this Agreement, effective as of the lapse date. If insurance is not reinstated, the City may, at its sole option, terminate this Agreement effective on the date of such lapse of insurance.

i) Before commencing any Services, Contractor shall furnish to City certificates of insurance and additional insured policy endorsements with insurers with ratings comparable to A-, VIII or higher, that are authorized to do business in the State of California, and that are satisfactory to City, in form evidencing all coverages set forth above. Approval of the insurance by City shall not relieve or decrease Contractor's liability hereunder.

j) The Workers' Compensation policy(ies) shall be endorsed with a waiver of subrogation in favor of the City for all work performed by the Contractor, its employees, agents and subcontractors.

k) If Contractor will use any subcontractor(s) to provide Services, Contractor shall require the subcontractor(s) to provide all necessary insurance and to name the City and County of San Francisco, its officers, agents and employees and the Contractor as additional insureds.

2c. Incidental and Consequential Damages and Limitation of Liability. Section 25 is hereby replaced in its entirety to read as follows:

25. Incidental and Consequential Damages and Limitation of Liability.

E&C MEDICAL INTELLIGENCE SHALL NOT BE LIABLE, REGARDLESS OF WHETHER ANY CLAIM IS BASED ON CONTRACT OR TORT, FOR ANY PUNITIVE SPECIAL, CONSEQUENTIAL, INDIRECT OR INCIDENTAL DAMAGES, INCLUDING, BUT NOT LIMITED TO, LOST PROFITS, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT OR THE SERVICES PERFORMED IN CONNECTION WITH THIS AGREEMENT.

E&C Medical Intelligence total liability to City shall be limited to the amount of Two Million, One Hundred Thousand Dollars ($2,100,000). E&C Medical Intelligence liability limit set forth herein shall not apply to: (1) E&C Medical Intelligence's obligation to indemnify and defend the City pursuant to Section 13 ("Infringement Indemnification") herein; or, (2) third party product or general liability claims resulting from the negligent or otherwise wrongful act or omission of E&C Medical Intelligence; or 3) claims or general damages of third parties that fall within the insurance coverage of this Agreement as amended, 4) statutory damages for Workers Compensation claims of E&C Medical Intelligence employees as specified in this Master Agreement, and (5) wrongful death caused by E&C Medical Intelligence as agreed in item "(2)", above.

2d. Termination. Section 30-A.3 is hereby replaced in its entirety to read as follows:

30-A.3 Survival. This section and the following sections of this Agreement shall survive termination of expiration of this Agreement:

5,4. License Grant/License Restrictions
5.5. License Grant/Copies
5-A. Title
13. Infringement Indemnification.
17. Submitting False Claims; Monetary Penalties.
18. Taxes.
19. Payment Does Not Imply Acceptance of Work.
21. Responsibility for Equipment.
22. Independent Contractor; Payment of Taxes and Other Expenses
23. Insurance
24. Indemnification and General Liability.
25. Incidental and Consequential Damages.
49. HIPAA
26. Liability of City.
28. Proprietary or Confidential Information of City
29. Protection of Private Information.
39. Non-Waiver of Rights.
40. Modification of Agreement
41. Administrative Remedy for Agreement Interpretation
42. Agreement Made in California; Venue.
43. Construction
44. Entire Agreement.
50. Protected Health Information
51. Exclusion Lists and Employee Verification
Appendix E BAA

2e. HIPPA. Section 49 is hereby replaced in its entirety to read as follows:

49. Business Associate Agreement.

The parties acknowledge that CITY is a Covered Entity as defined in the Healthcare Insurance Portability and Accountability Act of 1996 ("HIPAA") and is required to comply with the HIPAA Privacy Rule governing the access, use, disclosure, transmission, and storage of protected health information (PHI) and the Security Rule under the Health Information Technology for Economic and Clinical Health Act, Public Law 111-005 ("the HITECH Act").

The parties acknowledge that CONTRACTOR will:

1. ☒ Do **at least one** or more of the following:

A. Create, receive, maintain, or transmit PHI for or on behalf of CITY/SFDPH (including storage of PHI, digital or hard copy, even if Contractor does not view the PHI or only does so on a random or infrequent basis); or

B. Receive PHI, or access to PHI, from CITY/SFDPH or another Business Associate of City, as part of providing a service to or for CITY/SFDPH, including legal, actuarial, accounting, consulting, data aggregation, management, administrative, accreditation, or financial; or

C. Transmit PHI data for CITY/SFDPH and require access on a regular basis to such PHI. (Such as health information exchanges (HIEs), e-prescribing gateways, or electronic health record vendors)

FOR PURPOSES OF THIS AGREEMENT, CONTRACTOR IS A BUSINESS ASSOCIATE OF CITY/SFDPH, AS DEFINED UNDER HIPAA. CONTRACTOR MUST COMPLY WITH AND COMPLETE THE FOLLOWING ATTACHED DOCUMENTS, INCORPORATED TO THIS AGREEMENT AS THOUGH FULLY SET FORTH HEREIN:

a. **Appendix E** SFDPH Business Associate Agreement (BAA) (04-12-2018)
   1. SFDPH Attestation 1 PRIVACY (06-07-2017)
   2. SFDPH Attestation 2 DATA SECURITY (06-07-2017)

2. ☐ **<u>NOT</u> do any of the activities listed above in subsection 1;**
Contractor is not a Business Associate of CITY/SFDPH. Appendix E and attestations are not required for the purposes of this Agreement.

2f. Protected Health Information. Section 50 is hereby added to the Agreement:

50. Protected Health Information. Contractor, all subcontractors, all agents and employees Contractor and any subcontractor shall comply with all federal and state laws regarding the transmission, storage and protection of all private health information disclosed to Contractor by City in the performance of this Agreement. Contractor agrees that any failure of Contactor to comply with the requirements of federal and/or state and/or local privacy laws shall be a material breach of the Contract. In the event that City pays a regulatory fine, and/or is assessed civil penalties or damages through private rights of action, based on an impermissible use or disclosure of protected health information given to Contractor or its subcontractors or agents by City, Contractor shall indemnify City for the amount of such fine or penalties or damages, including costs of notification. In such an event, in addition to any other remedies available to it under equity or law, the City may terminate the Contract.

2g. Exclusion Lists and Employee Verification. Section 51 is hereby added to the Agreement:

51. Exclusion Lists and Employee Verification. Upon hire and monthly thereafter, Contractor will check the exclusion lists published by the Office of the Inspector General (OIG), General Services Administration (GSA), and the California Department of Health Care Services (DHCS) to ensure that any employee, temporary employee, volunteer, consultant, or governing body member responsible for oversight, administering or delivering state or federally-funded services who is on any of these lists is excluded from (may not work in) your program or agency. Proof of checking these lists will be retained for seven years.

2h. Replace appendix C of the original agreement with the attached appendix C dated May 31, 2018.

2i. Replace appendix D of the original agreement with the attached appendix D dated May 8, 2018.

2j. Replace appendix E of the original agreement with the attached appendix E dated April 12, 2018.

2k. Remove appendix G of the original agreement and replace with the attached appendix G.

2l. Replace appendix H of the original agreement with the attached appendix H dated May 31, 2018.

2m. All references in the Agreement to "Hill-Rom" shall be replaced with "E&C Medical Intelligence"

3. Effective Date. Each of the modifications set forth in Section 2 shall be effective on and after May 31, 2018**.**

4. Legal Effect. Except as expressly modified by this Amendment, all of the terms and conditions of the Agreement shall remain unchanged and in full force and effect.

IN WITNESS WHEREOF, Contractor and City have executed this Amendment as of the date first referenced above.

CITY

Recommended by:

Barbara A. Garcia, MPA
Director of Health
Department of Public Health

Approved as to Form:

Dennis J. Herrera
City Attorney

By: _____
Virginia Dario Elizondo
Deputy City Attorney

Approved:

Jaci Fong
Director of the Office of Contract Administration, and Purchaser

CONTRACTOR

E&C Medical Intelligence

Andrew Messick
Chief Financial Officer
100 Regency Forest, suite 200
Cary NC, 27518

City supplier I.D.: 0000027600

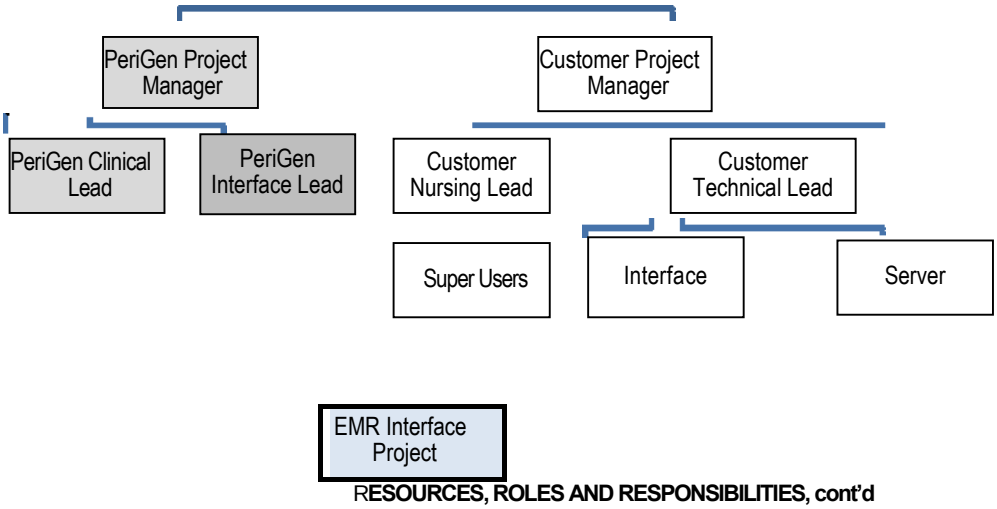
Appendix C
May 31, 2018

San Francisco PeriWatch Statement of Work for the Implementation of EPIC Interfaces to/from PeriWatch

I. RESOURCES, ROLES AND RESPONSIBILITIES

For the duration of the project, Customer must ensure the availability of roles/resources to drive the implementation process with the assistance of PeriGen personnel. Please note that an individual may fill more than one role.

Project Management: Required Teams and Structure



RESOURCES, ROLES AND RESPONSIBILITIES, cont'd

Customer Role Requirement	Time Commitment Per Role For Project Duration	Responsibilities
Nursing Lead	10 - 20%	• Participate in configuration meetings/webinars • Review and approve training requirements for nursing personnel • Ensure training and go-live support are carefully planned, staffed and attended by nursing personnel • Attend weekly project team status calls
Project Manager	25%	• Ensure project schedule, milestone and deliverable adherence by their respective team members • Ensure resource availability • Manage project schedule, resources, budget, and deliverables • Escalate issues, as needed • Co-conduct weekly project team status calls • Review / finalize Project Plan and weekly status meeting minutes • Manage change control process and procedure
Super User / Trainer	At least 1 per 10 beds, 1 per shift, and 1 per unit at 20%	• Represents documentation workflow requirements • Performs software and interface testing • Participates in training webinars • Serves as support personnel on their respective units and shifts when interfaces are activated
Interface Resource(s)	50-75%	• Resource to build out the EMR and/or configure the interface engine • Resource to participate in connectivity and functional testing of the interfaces

II. PROJECT PHASES, ACTIVITIES, RESPONSIBILITIES AND DELIVERABLES

The following table outlines Customer and PeriGen responsibilities with associated Deliverables.

PROJECT INITIATION & PLANNING				
Activity	**Description**	**Responsible Party**	**PeriGen Deliverable**	**Customer Deliverable**
Project Planning and Management	Customer and PeriGen will each designate a Project Manager to closely manage this project to meet the critical milestones and mutually-agreed "Go Live" timeline. A detailed project plan will be developed which specifies the required resources, time commitments, responsibilities, deliverables and delivery dates for Customer and PeriGen project team members. Project Management will oversee that scope, budget, and schedule are met; risks are identified; mitigation strategies employed; and, change requests managed, as required.	Customer Project Manager PeriGen Project Manager	Project plan with identified resources, milestones, and schedule for deploying PeriWatch and associated modules Change Control Process and Procedure Weekly status report Weekly status meeting	Confirmed list of all project resources with contact information Weekly Status Meeting

ASSESS and DESIGN				
Activity	**Description**	**Responsible Party**	**PeriGen Deliverable**	**Customer Deliverable**
Clinical Configuration	PeriGen will conduct one onsite meeting up to **2 contiguous days** and additional clinical configuration webinars, as needed, to reconfigure existing Comprehensive Maternal WatchChild software to Integrated Maternal Software with interface to/from EPIC and ADT. This session will also define the documentation workflow between PeriGen's software and the EMR. The desired configurations will be documented in a Clinical Configuration Workshop document. Customer will then configure the system per the document.	PeriGen Clinical Lead Customer Nursing and Physician Leads Customer's EMR Analyst	EMR Mapping template Clinical Configuration Workshop document	Clinically-configured PeriWatch software Completed EMR Mapping template prior to start of build.
Define Testing Strategy, Testing Plan, and Testing Infrastructure	It is essential that PeriGen and Customer define the strategy for testing to meet specific Customer needs, policies and/or procedures early in the project as it requires technical environments and resources to successfully test the system. Specific planning will include: • Defining the test environments • Identifying roles and responsibilities for testing • Defining the testing process • Documenting and communicating test results • Remediating and retesting of test issues	PeriGen Technical Lead PeriGen Clinical Lead PeriGen Project Manager Customer Project Manager Customer Technical Specialist(s) Customer Nursing Lead/Super User	Proposed test plan Technical Specifications for test environment	Approved test plan and resources Configured Test environment with remote access for PeriGen personnel via SecureLink

BUILD, INSTALL and CONFIGURE				
Activity	**Description**	**Responsible Party**	**PeriGen Deliverable**	**Customer Deliverabl**
Interface Activities	Customer is responsible for: • Building Customer-side of EMR interface • Assisting in interface testing to ensure connectivity and desired data workflow.	Customer Technical Specialist(s)	PeriGen-build for EMR interface Configured Rhapsody interface engine Specifications for interface(s)	Build for Customer-side of EMR interface Configured interface engine

TESTING				
Interface Testing	Customer performs functional and integration testing with assistance by PeriGen, as needed, for issue resolution. Customer and PeriGen test interfaces according to EMR mapping document and ADT scenarios.	Customer Technical Specialist(s) PeriGen Technical Lead PeriGen Interface Lead PeriGen Clinical Lead Customer Super User PeriGen Clinical Lead	Sample test sheets for contracted interface(s) ADT Testing Scenarios	Completed Test Results

TRAINING				
Activity	**Description**	**Responsible Party**	**PeriGen Deliverable**	**Customer Deliverable**
Training	PeriGen will provide remote clinical training webinars on the updated ADT and EMR interface up to 8 Hours	PeriGen Clinical Lead Customer Nursing Lead Customer Super Users	Lead Trainer to conduct the training webinars	Confirmed List of Super-Users and All Users Requiring Training Confirmed List of Scheduled Webinars

GO LIVE				
Activity	**Description**	**Responsible Party**	**PeriGen Deliverable**	**Customer Deliverable**
Go Live of EMR Interfaces	PeriGen will provide up to 8 hours of after-hours support by one technical resource when interfaces are activated at time of EPIC go live.	PeriGen Technical Lead	Deployed PeriGen- side interface(s)	Deployed Customer-side interface(s) Sign Off on Project Acceptance

III. Interfaces in Scope

The Scope of this project includes development, install, test EPIC interfaces from WatchChild to Epic and Epic to WatchChild. This interfaces in scope for this project are as follows:

1) Single sign on launch.
2) Vitals (Outbound).
3) Annotations (outbound and inbound).
4) Discrete data (outbound and inbound).
5) Medications (Inbound).
6) ADT.

IV. Inclusions

Epic Interfaces Project Includes:

- Develop, install and test **EPIC** interface from WatchChild to **EPIC** and/or **EPIC** to **WatchChild**.
- Develop, install and test **ADT** from **EPIC** to WatchChild.
- Conduct Clinical Workflow and Configuration Session (**onsite up to 2 days**).
- Reconfigure existing Comprehensive Maternal WatchChild software to Integrated Maternal Software with interface to/from **EPIC** and **ADT**.
- Remote clinical training webinars on updated **ADT** and **EMR** interface up to **8** hours.
- Up to **8** hours of after-hours support by one technical resource when interfaces are activated at time of **EPIC** go live. This support will be extended for another **90** days to support any issues or optimizations in regards to integrated module.
- If Customer wishes to go live on a weekend or holiday they will be charged an additional fee of $5000.
- One Rhapsody license for Test server.

V. ASSUMPTIONS

This Statement of Work was developed, resourced, and priced based on the following assumptions. Should any of these assumptions not remain valid at any time throughout the project, the Change Control Process will be implemented to assess the impact of the change to the schedule, resources and/or fees.

1. PeriGen recognizes that there may be changes to the original scope of services. Any changes to the agreed-upon scope of services will be addressed through the Change Control Process.
2. PeriGen's resources conduct all project activities during weekday business hours with the exception of one technical resource to provide up to 8 hours of after-hours support when the EMR interfaces are activated.
3. All work will be completed remotely unless otherwise noted above.

4. Any **ADT** or **EMR** interface will be implemented based on Customer's approval of mapping documents.
5. Customer will assign a **primary Point of Contact** to co-ordinate the activities between Customer and PeriGen.
6. Customer is responsible for providing an interface engine to which PeriGen's Rhapsody interface engine will communicate.
7. Customer is responsible for procuring any necessary Epic Licenses.
8. SecureLink remote technology is the standard method for PeriGen to access Customer's servers.
9. No customizations to PeriWatch software are included.
10. Migration of physical to virtual servers is a pre-requisite to this project as described in Quote # 1500203 rev2, dated January 18, 2017.
11. Any necessary travel cost are included in implementation fee.

VI. Project Timeline

Perigen Will be ready for testing and configuration by November 30, 2018.

Epic Phase Name	Epic Start Date	Epic Finish Date	PeriGen Phase Name	PeriGen Start Date	PeriGen Finish Date
Phase 0:(Groundwork)	January 1, 2018	March 30, 2018			
Phase 1: (Direction Setting)	April 2, 2018	May 25, 2018			
Phase 2: (Adoption and configuration)	May 28, 2018	November 30, 2018			
Phase 3: (Testing)	December 3, 2018	May 31, 2019			
Phase 4.1-4.2: (Training and Go Live Readiness)	June 3, 2019	August 2, 2019			
Phase 4.3: (Go Live)	August 3, 2019	August 23, 2019			
Phase 5: (Post Go Live)	August 26, 2019	November 22, 2019			

IV. Change Control Process

The Change Control Process is one of the most critical processes for the success or failure of any project. This process is the primary vehicle for containing scope and ensuring that management has the opportunity to make timely trade-offs between the three key project variables of cost, time and scope. It is imperative that potential changes are identified early, documented carefully, and resolved at the appropriate levels of responsibility. In order to more closely manage this project, the following Change Control Process will be initiated.

A change shall be defined as:

- activities which Customer or PeriGen is asked to add to this project or remove from this project, but shall not include clarifications to existing activities
- any action or omission which leads to a change in schedule, resources, scope, or deliverable(s)
- any Customer or PeriGen responsibility which is not met and impacts project progress
- any revision requested to an already approved deliverable

Change Initiation

When a change is recognized, a Change Request shall be documented in writing. Either Customer or PeriGen may initiate a Change Request. Change Requests shall be submitted by the requesting party to the Project Manager of the other party for their review, validation and approval.

Change Validation

Change Requests will be validated using a two-step process. The first step is to determine if the change is within the scope of the project. If the proposed change is determined to be within the scope of the project, no further action is required within the Change Control Process. Customer and PeriGen Project Managers will provide appropriate direction to their respective project staff.

The second step of the process is used only if the change proves to be outside the scope of the project. In these situations, the change must be reviewed to determine its validity and determine its financial, resource and schedule impact. Any time expended in researching changes will be billed to Customer. If, after reviewing the change request, Customer agrees that it is necessary or valid, then PeriGen will prepare a cost estimate.

If there is disagreement between the Customer and PeriGen Project Managers about any change request, it will be brought to their respective management for resolution.

Change Request Preparation

PeriGen will prepare the Change Request. It will document the scope of the change, and any adjustments in price, schedule, resources, and/or other factors, as applicable.

After PeriGen submits the Change Request to Customer for review, Customer has five (5) U.S. business days to respond. The Customer Project Manager may either:

1. Approve the Change Request ;
2. Disapprove the Change Request for any reason;
3. Place the Change Request on hold for later review and implementation, assuming it is prior to the expiration date on the Change Request; or,
4. Escalate the Change Request to the Customer Executive Sponsor if not able to be resolved at the Project Management level.

Such direction from Customer to PeriGen will be in writing and will reference the specific Change Request. Duly authorized representatives of Customer and PeriGen will sign the Change Request form.

Change Request Implementation

When Customer approves a Change Request for implementation, a new task will be defined and appended to the Project Plan.

V. Electronic Health Record (EHR) Optional Product and Services

If available from the Contractor, City shall have the option to purchase additional products and services to facilitate the integration of the Contractors products and services covered under this agreement to the new Electronic Health Record (EHR) application that will be installed (estimated to begin in calendar year 2018) by the City. The products and services may include custom programing services, interface development services, interfaces, product or project implementation services, database administration, data management services to include data clean-up, conversion, and archiving, training, and consulting services. Prior to exercising this option Contractor and City shall mutually develop a detailed project plan and quote for the requested products or services.

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Bob Pierson
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San Francisco General Hospital
1001 Potrero Avenue
San Francisco, CA 94110

James A Genevro
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Issue Date: May 22, 2018

PeriWatch™ System Additions	***Enterprise Pricing***
Epic Integration Bundle	
• Software	$ 45,000
• Implementation	$ 5,000
	Total One-time Fees:
	$ 50,000
See page 2 for the Inclusions and Assumptions	

PeriGen
Advanced
Perinatal Systems

100 Regency Forest Drive, Suite 200
Cary, North Carolina 27518
877.700.4755
info@perigen.com

EPIC Interface Project includes:

- Develop, install and test EPIC interface from WatchChild to EPIC and/or EPIC to WatchChild
- Develop, install and test ADT from EPIC to WatchChild
- Conduct Clinical Workflow and Configuration Session (onsite up to 2 days)
- Reconfigure existing Comprehensive Maternal WatchChild software to Integrated Maternal Software with interface to/from EPIC and ADT.
- Remote clinical training webinars on updated ADT and EMR interface up to 8 hours
- Up to 8 hours of after-hours support by one technical resource when interfaces are activated at time of EPIC go live. Additional fees will apply if interfaces are activated on a holiday.
- One Rhapsody license for Test server.

Assumptions:

- All work is conducted during weekday, business hours unless otherwise noted above.
- All work will be completed remotely unless otherwise noted above.
- All interfaces shall comply with PeriGen's standard interface specifications which includes the Customer providing an interface engine on the Customer-side of any interface. PeriGen provides the interface engine on the PeriGen side of theinterface.
- The ADT and EMR interface will be implemented based on Customer's approval of mapping documents provided by PeriGen.
- Customer is responsible for procuring any necessary EPIC licenses.
- Customer is responsible for providing an interface engine to which PeriGen's Rhapsody interface engine will communicate.
- No customizations to WatchChild software are included.
- SecureLink remote technology is the standard method for PeriGen to access Customer's servers.
- Customer will assign a primary Point of Contact to coordinate the activities between Customer and PeriGen.
- Migration of physical to virtual server is a pre-requisite to this project as described in Quote # 1500203 rev2, dated January 18, 2017.
- Any necessary travel cost are included in Implementation fee.

Other Key Information:

- Proposal expires March 28, 2018

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Appendix D

Bob Pierson
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Issue Date: May 22, 2018

PeriWatch™ System Additions	***Enterprise Pricing***
Rhapsody License (for test/train environment)	$ 2,681
VM Migration (production and test/train environments) • Includes project manager and technical lead • All work must be done during regular support hours, 8am – 6 pm eastern • Software upgrade to PeriWatch 2017 v2 or newer will be required (costs covered by SMA) • Projected timeline of eight weeks for implementation once a team is assigned after the PO is received and processed and the VM is built according to the VM Setup Guide and turned over to our team. Planned downtime for the cutover is 8 hours. • For the software upgrade, a clinical resource will be made available to cover the new alert parameters. This is covered under the SMA contract and the training will be online with the system admins and/or superusers. • SFGH is responsible for completing the activities as outlined on the following pages	$ 10,506
	Total One-time Fees:
PO is required and fees will be invoiced in full after and due within 30 days. SFGH will be responsible for any taxes	$ 13,187
See page 2 for the Activity and Responsibilities	

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Activity	Responsible Party
Server Build	
1. Build Virtual Servers	Customer
2. Create backup (image)	Customer
3. Install anti-virus, system backup solution, SQL Backup schedule, etc.	Customer
4. Install Rhapsody licenses, if applicable	PeriGen
WatchChild (WC) or PeriWatch (PW) Server Software Installation	
1. Install WC/PW on Virtual Servers	PeriGen
2. Install/Configure interfaces	PeriGen
3. Install/Configure Custom Reports, if applicable	PeriGen
4. Provide instructions/files for Client Upgrade/Push to PCs	PeriGen
5. Provide instructions/files for Client Upgrade on Citrix	PeriGen
6. Provide instructions/files for Message Dispatcher upgrade for Single Sign On, if applicable	PeriGen
7. Provide instructions/files for User Maintenance Tool	PeriGen
8. Confirm Active Directory settings, if applicable	Customer /PeriGen
9. Confirm access to Archive Storage Path	Customer /PeriGen
10. Copy DB from server to VM and test upgrade to Installed release	PeriGen
11. Complete and distribute VM Migration Cut Over Plan	PeriGen
Pre-Go Live Prep	
1. Locate Spare DAS / Flash Card Equipment; configure Flash for customer	Customer/PeriGen
2. Test Interface/Integrations	Customer/PeriGen
3. Test Custom Reports (training server), if applicable	Customer/PeriGen
4. Send Data Recovery Forms to Customer	PeriGen
Go Live (cut over)	
1. Start Downtime	Customer /PeriGen
2. Restore final backup from server (Production) to new VM and upgrade to installed version	Customer /PeriGen
3. Swap IPs (if network supports)	Customer
4. Reconfigure application to use new IP (if swapped)	PeriGen
5. Configure DAS for new server IP if unable to Swap IPs	Customer /PeriGen
6. Upgrade Clients or Push out Client folders	Customer
7. Update Interface/Integrations	Customer /PeriGen
8. Update Alert parameter settings to customer values	PeriGen
9. Update Roles if New Alert features added	Customer

10. Work through Checklist; Citrix access, SSO, Login Authentication, Reports, Printing, etc.	Customer /PeriGen
11. Turn system over to users	Customer /PeriGen
12. Reconfigure DAS unit on Roaming Fetal Monitor Carts, if applicable	Customer /PeriGen
13. Remove old version of WC/PW software from workstations	Customer
Post Go Live Follow Up	
1. Post Go Live Follow Up Call	Customer /PeriGen

Other Key Information:

- Proposal expires March 14, 2018

Assumptions:

1. All hardware/software meets PeriGen Technical Specifications for the software that is being installed.
2. All environments must be remotely accessible to PeriGen personnel via SecureLink.
3. All work will be performed remotely during weekday, business hours.
4. Any necessary travel cost are included in Implementation fee

San Francisco Department of Public Health

Business Associate Agreement

This Business Associate Agreement ("BAA") supplements and is made a part of the contract by and between the City and County of San Francisco, the Covered Entity ("CE"), and Contractor, the Business Associate ("BA") (the "Agreement"). To the extent that the terms of the Agreement are inconsistent with the terms of this BAA, the terms of this BAA shall control.

RECITALS

A. CE, by and through the San Francisco Department of Public Health ("SFDPH"), wishes to disclose certain information to BA pursuant to the terms of the Agreement, some of which may constitute Protected Health Information ("PHI") (defined below).

B. For purposes of the Agreement, CE requires Contractor, even if Contractor is also a covered entity under HIPAA, to comply with the terms and conditions of this BAA as a BA of CE.

C. CE and BA intend to protect the privacy and provide for the security of PHI disclosed to BA pursuant to the Agreement in compliance with the Health Insurance Portability and Accountability Act of 1996, Public Law 104-191 ("HIPAA"), the Health Information Technology for Economic and Clinical Health Act, Public Law 111-005 ("the HITECH Act"), and regulations promulgated there under by the U.S. Department of Health and Human Services (the "HIPAA Regulations") and other applicable laws, including, but not limited to, California Civil Code §§ 56, et seq., California Health and Safety Code § 1280.15, California Civil Code §§ 1798, et seq., California Welfare & Institutions Code §§5328, et seq., and the regulations promulgated there under (the "California Regulations").

D. As part of the HIPAA Regulations, the Privacy Rule and the Security Rule (defined below) require CE to enter into a contract containing specific requirements with BA prior to the disclosure of PHI, as set forth in, but not limited to, Title 45, Sections 164.314(a), 164.502(a) and (e) and 164.504(e) of the Code of Federal Regulations ("C.F.R.") and contained in this BAA.

E. BA enters into agreements with CE that require the CE to disclose certain identifiable health information to BA. The parties desire to enter into this BAA to permit BA to have access to such information and comply with the BA requirements of HIPAA, the HITECH Act, and the corresponding Regulations.

In consideration of the mutual promises below and the exchange of information pursuant to this BAA, the parties agree as follows:

1. **Definitions.**

a. Breach means the unauthorized acquisition, access, use, or disclosure of PHI that compromises the security or privacy of such information, except where an unauthorized person to whom such information is disclosed would not reasonably have been able to retain such information, and shall have the meaning given to such term under the HITECH Act and HIPAA Regulations [42 U.S.C. Section 17921 and 45 C.F.R. Section 164.402], as well as California Civil Code Sections 1798.29 and 1798.82.

b. Breach Notification Rule shall mean the HIPAA Regulation that is codified at 45 C.F.R. Parts 160 and 164, Subparts A and D.

c. Business Associate is a person or entity that performs certain functions or activities that involve the use or disclosure of protected health information received from a covered entity, but other than in the capacity of a member of the workforce of such covered entity or arrangement, and shall have the meaning given to such term under the Privacy Rule, the Security Rule, and the HITECH Act, including, but not limited to, 42 U.S.C. Section 17938 and 45 C.F.R. Section 160.103.

d. Covered Entity means a health plan, a health care clearinghouse, or a health care provider who transmits any information in electronic form in connection with a transaction covered under HIPAA Regulations, and shall have the meaning given to such term under the Privacy Rule and the Security Rule, including, but not limited to, 45 C.F.R. Section 160.103.

e. Data Aggregation means the combining of Protected Information by the BA with the Protected Information received by the BA in its capacity as a BA of another CE, to permit data analyses that relate to the health care operations of the respective covered entities, and shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 C.F.R. Section 164.501.

f. Designated Record Set means a group of records maintained by or for a CE, and shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 C.F.R. Section 164.501.

g. Electronic Protected Health Information means Protected Health Information that is maintained in or transmitted by electronic media and shall have the meaning given to such term under HIPAA and the HIPAA Regulations, including, but not limited to, 45 C.F.R. Section 160.103. For the purposes of this BAA, Electronic PHI includes all computerized data, as defined in California Civil Code Sections 1798.29 and 1798.82.

h. Electronic Health Record means an electronic record of health-related information on an individual that is created, gathered, managed, and consulted by authorized health care clinicians and staff, and shall have the meaning given to such term under the HITECH Act, including, but not limited to, 42 U.S.C. Section 17921.

i. Health Care Operations shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 C.F.R. Section 164.501.

j. Privacy Rule shall mean the HIPAA Regulation that is codified at 45 C.F.R. Parts 160 and 164, Subparts A and E.

k. Protected Health Information or PHI means any information, including electronic PHI, whether oral or recorded in any form or medium: (i) that relates to the past, present or future physical or mental condition of an individual; the provision of health care to an individual; or the past, present or future payment for the provision of health care to an individual; and (ii) that identifies the individual or with respect to which there is a reasonable basis to believe the information can be used to identify the individual, and shall have the meaning given to such term under the Privacy Rule, including, but not limited to, 45 C.F.R. Sections 160.103 and 164.501. For the purposes of this BAA, PHI includes all medical information and health insurance information as defined in California Civil Code Sections 56.05 and 1798.82.

l. Protected Information shall mean PHI provided by CE to BA or created, maintained, received or transmitted by BA on CE's behalf.

m. Security Incident means the attempted or successful unauthorized access, use, disclosure, modification, or destruction of information or interference with system operations in an information system, and shall have the meaning given to such term under the Security Rule, including, but not limited to, 45 C.F.R. Section 164.304.

n. Security Rule shall mean the HIPAA Regulation that is codified at 45 C.F.R. Parts 160 and 164, Subparts A and C.

o. Unsecured PHI means PHI that is not secured by a technology standard that renders PHI unusable, unreadable, or indecipherable to unauthorized individuals and is developed or endorsed by a standards developing organization that is accredited by the American National Standards Institute, and shall have the meaning given to such term under the HITECH Act and any guidance issued pursuant to such Act including, but not limited to, 42 U.S.C. Section 17932(h) and 45 C.F.R. Section 164.402.

2. Obligations of Business Associate.

a. Attestations. Except when CE's data privacy officer exempts BA in writing, the BA shall complete the following forms, attached and incorporated by reference as though fully set forth herein, SFDPH Attestations for Privacy (Attachment 1) and Data Security (Attachment 2) within sixty (60) calendar days from the execution of the Agreement. If CE makes substantial changes to any of these forms during the term of the Agreement, the BA will be required to complete CE's updated forms within sixty (60) calendar days from the date that CE provides BA with written notice of such changes. BA shall retain such records for a period of seven years after the Agreement terminates and shall make all such records available to CE within 15 calendar days of a written request by CE.

b. User Training. The BA shall provide, and shall ensure that BA subcontractors, provide, training on PHI privacy and security, including HIPAA and HITECH and its regulations, to each employee or agent that will access, use or disclose Protected Information, upon hire and/or prior to accessing, using or disclosing Protected Information for the first time, and at least annually thereafter during the term of the Agreement. BA shall maintain, and shall ensure that BA subcontractors maintain, records indicating the name of each employee or agent and date on which the PHI privacy and security trainings were completed. BA shall retain, and ensure that BA subcontractors retain, such records for a period of seven years after the Agreement terminates and shall make all such records available to CE within 15 calendar days of a written request by CE.

c. Permitted Uses. BA may use, access, and/or disclose Protected Information only for the purpose of performing BA's obligations for, or on behalf of, the City and as permitted or required under the Agreement and BAA, or as required by law. Further, BA shall not use Protected Information in any manner that would constitute a violation of the Privacy Rule or the HITECH Act if so used by CE. However, BA may use Protected Information as necessary (i) for the proper management and administration of BA; (ii) to carry out the legal responsibilities of BA; (iii) as required by law; or (iv) for Data Aggregation purposes relating to the Health Care Operations of CE [45 C.F.R. Sections 164.502, 164.504(e)(2). and 164.504(e)(4)(i)].

d. Permitted Disclosures. BA shall disclose Protected Information only for the purpose of performing BA's obligations for, or on behalf of, the City and as permitted or required under the Agreement and BAA, or as required by law. BA shall not disclose Protected Information in any manner that would constitute a violation of the

Privacy Rule or the HITECH Act if so disclosed by CE. However, BA may disclose Protected Information as necessary (i) for the proper management and administration of BA; (ii) to carry out the legal responsibilities of BA; (iii) as required by law; or (iv) for Data Aggregation purposes relating to the Health Care Operations of CE. If BA discloses Protected Information to a third party, BA must obtain, prior to making any such disclosure, (i) reasonable written assurances from such third party that such Protected Information will be held confidential as provided pursuant to this BAA and used or disclosed only as required by law or for the purposes for which it was disclosed to such third party, and (ii) a written agreement from such third party to immediately notify BA of any breaches, security incidents, or unauthorized uses or disclosures of the Protected Information in accordance with paragraph 2 (n) of this BAA, to the extent it has obtained knowledge of such occurrences [42 U.S.C. Section 17932; 45 C.F.R. Section 164.504(e)]. BA may disclose PHI to a BA that is a subcontractor and may allow the subcontractor to create, receive, maintain, or transmit Protected Information on its behalf, if the BA obtains satisfactory assurances, in accordance with 45 C.F.R. Section 164.504(e)(1), that the subcontractor will appropriately safeguard the information [45 C.F.R. Section 164.502(e)(1)(ii)].

e. Prohibited Uses and Disclosures. BA shall not use or disclose Protected Information other than as permitted or required by the Agreement and BAA, or as required by law. BA shall not use or disclose Protected Information for fundraising or marketing purposes. BA shall not disclose Protected Information to a health plan for payment or health care operations purposes if the patient has requested this special restriction, and has paid out of pocket in full for the health care item or service to which the Protected Information solely relates [42 U.S.C. Section 17935(a) and 45 C.F.R. Section 164.522(a)(1)(vi)]. BA shall not directly or indirectly receive remuneration in exchange for Protected Information, except with the prior written consent of CE and as permitted by the HITECH Act, 42 U.S.C. Section 17935(d)(2), and the HIPAA regulations, 45 C.F.R. Section 164.502(a)(5)(ii); however, this prohibition shall not affect payment by CE to BA for services provided pursuant to the Agreement.

f. Appropriate Safeguards. BA shall take the appropriate security measures to protect the confidentiality, integrity and availability of PHI that it creates, receives, maintains, or transmits on behalf of the CE, and shall prevent any use or disclosure of PHI other than as permitted by the Agreement or this BAA, including, but not limited to, administrative, physical and technical safeguards in accordance with the Security Rule, including, but not limited to, 45 C.F.R. Sections 164.306, 164.308, 164.310, 164.312, 164.314 164.316, and 164.504(e)(2)(ii)(B). BA shall comply with the policies and procedures and documentation requirements of the Security Rule, including, but not limited to, 45 C.F.R. Section 164.316, and 42 U.S.C. Section 17931. BA is responsible for any civil penalties assessed due to an audit or investigation of BA, in accordance with 42 U.S.C. Section 17934(c).

g. Business Associate's Subcontractors and Agents. BA shall ensure that any agents and subcontractors that create, receive, maintain or transmit Protected Information on behalf of BA, agree in writing to the same restrictions and conditions that apply to BA with respect to such PHI and implement the safeguards required by paragraph 2.f. above with respect to Electronic PHI [45 C.F.R. Section 164.504(e)(2) through (e)(5); 45 C.F.R. Section 164.308(b)]. BA shall mitigate the effects of any such violation.

h. Accounting of Disclosures. Within ten (10) calendar days of a request by CE for an accounting of disclosures of Protected Information or upon any disclosure of Protected Information for which CE is required to account to an individual, BA and its agents and subcontractors shall make available to CE the information required to

provide an accounting of disclosures to enable CE to fulfill its obligations under the Privacy Rule, including, but not limited to, 45 C.F.R. Section 164.528, and the HITECH Act, including but not limited to 42 U.S.C. Section 17935 (c), as determined by CE. BA agrees to implement a process that allows for an accounting to be collected and maintained by BA and its agents and subcontractors for at least seven (7) years prior to the request. However, accounting of disclosures from an Electronic Health Record for treatment, payment or health care operations purposes are required to be collected and maintained for only three (3) years prior to the request, and only to the extent that BA maintains an Electronic Health Record. At a minimum, the information collected and maintained shall include: (i) the date of disclosure; (ii) the name of the entity or person who received Protected Information and, if known, the address of the entity or person; (iii) a brief description of Protected Information disclosed; and (iv) a brief statement of purpose of the disclosure that reasonably informs the individual of the basis for the disclosure, or a copy of the individual's authorization, or a copy of the written request for disclosure [45 C.F.R. 164.528(b)(2)]. If an individual or an individual's representative submits a request for an accounting directly to BA or its agents or subcontractors, BA shall forward the request to CE in writing within ten (10) calendar days.

i. Access to Protected Information. BA shall make Protected Information maintained by BA or its agents or subcontractors in Designated Record Sets available to CE for inspection and copying within ten (10) days of request by CE to enable CE to fulfill its obligations under state law [Health and Safety Code Section 123110] and the Privacy Rule, including, but not limited to, 45 C.F.R. Section 164.524 [45 C.F.R. Section 164.504(e)(2)(ii)(E)]. If BA maintains Protected Information in electronic format, BA shall provide such information in electronic format as necessary to enable CE to fulfill its obligations under the HITECH Act and HIPAA Regulations, including, but not limited to, 42 U.S.C. Section 17935(e) and 45 C.F.R. 164.524.

j. Amendment of Protected Information. Within ten (10) days of a request by CE for an amendment of Protected Information or a record about an individual contained in a Designated Record Set, BA and its agents and subcontractors shall make such Protected Information available to CE for amendment and incorporate any such amendment or other documentation to enable CE to fulfill its obligations under the Privacy Rule, including, but not limited to, 45 C.F.R Section 164.526. If an individual requests an amendment of Protected Information directly from BA or its agents or subcontractors, BA must notify CE in writing within ten (10) days of the request and of any approval or denial of amendment of Protected Information maintained by BA or its agents or subcontractors [45 C.F.R. Section 164.504(e)(2)(ii)(F)].

k. Governmental Access to Records. BA shall make its internal practices, books and records relating to the use and disclosure of Protected Information available to CE and to the Secretary of the U.S. Department of Health and Human Services (the "Secretary") for purposes of determining BA's compliance with HIPAA [45 C.F.R. Section 164.504(e)(2)(ii)(I)]. BA shall provide CE a copy of any Protected Information and other documents and records that BA provides to the Secretary concurrently with providing such Protected Information to the Secretary.

l. Minimum Necessary. BA, its agents and subcontractors shall request, use and disclose only the minimum amount of Protected Information necessary to accomplish the intended purpose of such use, disclosure, or request. [42 U.S.C. Section 17935(b); 45 C.F.R. Section 164.514(d)]. BA understands and agrees that the definition of "minimum necessary" is in flux and shall keep itself informed of guidance issued by the Secretary with respect to

what constitutes "minimum necessary" to accomplish the intended purpose in accordance with HIPAA and HIPAA Regulations.

m. Data Ownership. BA acknowledges that BA has no ownership rights with respect to the Protected Information.

n. Notification of Breach. BA shall notify CE within 5 calendar days of any breach of Protected Information; any use or disclosure of Protected Information not permitted by the BAA; any Security Incident (except as otherwise provided below) related to Protected Information, and any use or disclosure of data in violation of any applicable federal or state laws by BA or its agents or subcontractors. The notification shall include, to the extent possible, the identification of each individual whose unsecured Protected Information has been, or is reasonably believed by the BA to have been, accessed, acquired, used, or disclosed, as well as any other available information that CE is required to include in notification to the individual, the media, the Secretary, and any other entity under the Breach Notification Rule and any other applicable state or federal laws, including, but not limited, to 45 C.F.R. Section 164.404 through 45 C.F.R. Section 164.408, at the time of the notification required by this paragraph or promptly thereafter as information becomes available. BA shall take (i) prompt corrective action to cure any deficiencies and (ii) any action pertaining to unauthorized uses or disclosures required by applicable federal and state laws. [42 U.S.C. Section 17921; 42 U.S.C. Section 17932; 45 C.F.R. 164.410; 45 C.F.R. Section 164.504(e)(2)(ii)(C); 45 C.F.R. Section 164.308(b)]

o. Breach Pattern or Practice by Business Associate's Subcontractors and Agents. Pursuant to 42 U.S.C. Section 17934(b) and 45 C.F.R. Section 164.504(e)(1)(iii), if the BA knows of a pattern of activity or practice of a subcontractor or agent that constitutes a material breach or violation of the subcontractor or agent's obligations under the Contract or this BAA, the BA must take reasonable steps to cure the breach or end the violation. If the steps are unsuccessful, the BA must terminate the contractual arrangement with its subcontractor or agent, if feasible. BA shall provide written notice to CE of any pattern of activity or practice of a subcontractor or agent that BA believes constitutes a material breach or violation of the subcontractor or agent's obligations under the Contract or this BAA within five (5) calendar days of discovery and shall meet with CE to discuss and attempt to resolve the problem as one of the reasonable steps to cure the breach or end the violation.

3. Termination.

a. Material Breach. A breach by BA of any provision of this BAA, as determined by CE, shall constitute a material breach of the Agreement and this BAA and shall provide grounds for immediate termination of the Agreement and this BAA, if BA fails to cure such breach within a reasonable period of time following written notice of such breach, any provision in the AGREEMENT to the contrary notwithstanding. [45 C.F.R. Section 164.504(e)(2)(iii).]

b. Judicial or Administrative Proceedings. CE may terminate the Agreement and this BAA, effective immediately, if (i) BA is named as defendant in a criminal proceeding for a violation of HIPAA, the HITECH Act, the HIPAA Regulations or other security or privacy laws or (ii) a finding or stipulation that the BA has violated any standard or requirement of HIPAA, the HITECH Act, the HIPAA Regulations or other security or privacy laws is made in any administrative or civil proceeding in which the party has been joined.

c. Effect of Termination. Upon termination of the Agreement and this BAA for any reason, BA shall, at the option of CE, return or destroy all Protected Information that BA and its agents and subcontractors still maintain in any form, and shall retain no copies of such Protected Information. If return or destruction is not feasible, as mutually determined by BA and CE, BA shall continue to extend the protections and satisfy the obligations of Section 2 of this BAA to such information, and limit further use and disclosure of such PHI to those purposes that make the return or destruction of the information infeasible [45 C.F.R. Section 164.504(e)(2)(ii)(J)]. If CE elects destruction of the PHI, BA shall certify in writing to CE that such PHI has been destroyed in accordance with the Secretary's guidance regarding proper destruction of PHI.

d. Civil and Criminal Penalties. BA understands and agrees that it is subject to civil or criminal penalties applicable to BA for unauthorized use, access or disclosure or Protected Information in accordance with the HIPAA Regulations and the HITECH Act including, but not limited to, 42 U.S.C. 17934 (c).

e. Disclaimer. CE makes no warranty or representation that compliance by BA with this BAA, HIPAA, the HITECH Act, or the HIPAA Regulations or corresponding California law provisions will be adequate or satisfactory for BA's own purposes. BA is solely responsible for all decisions made by BA regarding the safeguarding of PHI.

4. Amendment to Comply with Law.

The parties acknowledge that state and federal laws relating to data security and privacy are rapidly evolving and that amendment of the Agreement or this BAA may be required to provide for procedures to ensure compliance with such developments. The parties specifically agree to take such action as is necessary to implement the standards and requirements of HIPAA, the HITECH Act, the HIPAA regulations and other applicable state or federal laws relating to the security or confidentiality of PHI. The parties understand and agree that CE must receive satisfactory written assurance from BA that BA will adequately safeguard all Protected Information. Upon the request of either party, the other party agrees to promptly enter into negotiations concerning the terms of an amendment to this BAA embodying written assurances consistent with the updated standards and requirements of HIPAA, the HITECH Act, the HIPAA regulations or other applicable state or federal laws. CE may terminate the Agreement upon thirty (30) days written notice in the event (i) BA does not promptly enter into negotiations to amend the Agreement or this BAA when requested by CE pursuant to this section or (ii) BA does not enter into an amendment to the Agreement or this BAA providing assurances regarding the safeguarding of PHI that CE, acting reasonably and in good faith, deems sufficient to satisfy the standards and requirements of applicable laws.

5. Reimbursement for Fines or Penalties.

In the event that CE pays a fine to a state or federal regulatory agency, and/or is assessed civil penalties or damages through private rights of action, based on an impermissible access, use or disclosure of PHI by BA or its subcontractors or agents, then BA shall reimburse CE in the amount of such fine or penalties or damages within thirty (30) calendar days from City's written notice to BA of such fines, penalties or damages.

Attachment 1 – SFDPH Privacy Attestation, version 06-07-2017
Attachment 2 – SFDPH Data Security Attestation, version 06-07-2017

Office of Compliance and Privacy Affairs
San Francisco Department of Public Health
101 Grove Street, Room 330, San Francisco, CA 94102
Email: compliance.privacy@sfdph.org
Hotline (Toll-Free): 1-855-729-6040

Contractor Name:	PeriGen Inc.	Contractor City Vendor ID	

PRIVACY ATTESTATION

INSTRUCTIONS: Contractors and Partners who receive or have access to health or medical information or electronic health record systems maintained by SFDPH must complete this form. Retain completed Attestations in your files for a period of 7 years. Be prepared to submit completed attestations, along with evidence related to the following items, if requested to do so by SFDPH.

Exceptions: If you believe that a requirement is Not Applicable to you, see instructions below in Section IV on how to request clarification or obtain an exception.

I. All Contractors.

	DOES YOUR ORGANIZATION…	Yes	No*
A	Have formal Privacy Policies that comply with the Health Insurance Portability and Accountability Act (HIPAA)?	✔	
B	Have a Privacy Officer or other individual designated as the person in charge of investigating privacy breaches or related incidents? If yes: Name & Title: Bruno Bendavid; Phone # 514-978-0611; Email: bruno.bendavid@perigen.com	✔	
C	Require health information Privacy Training upon hire and annually thereafter for all employees who have access to health information? [Retain documentation of trainings for a period of 7 years.] [SFDPH privacy training materials are available for use; contact OCPA at 1-855-729-6040.]	✔	
D	Have proof that employees have signed a form upon hire and annually thereafter, with their name and the date, acknowledging that they have received health information privacy training? [Retain documentation of acknowledgement of trainings for a period of 7 years.]	✔	
E	Have (or will have if/when applicable) Business Associate Agreements with subcontractors who create, receive, maintain , transmit, or access SFDPH's health information?	✔	
F	Assure that staff who create, or transfer health information (via laptop, USB/thumb-drive, handheld), have prior supervisorial authorization to do so **AND** that health information is **only transferred or created on encrypted devices approved by SFDPH Information Security staff**?	✔	

II. Contractors who serve patients/clients and have access to SFDPH PHI, must also complete this section.

	If Applicable: DOES YOUR ORGANIZATION…	Yes	No*
G	Have (or will have if/when applicable) evidence that SFDPH Service Desk (628-206-SERV) was notified to de-provision employees who have access to SFDPH health information record systems within 2 business days for regular terminations and within 24 hours for terminations due to cause?	✔	
H	Have evidence in each patient's / client's chart or electronic file that a Privacy Notice that meets HIPAA regulations was provided in the patient's / client's preferred language? (English, Cantonese, Vietnamese, Tagalog, Spanish, Russian forms may be required and are available from SFDPH.)		✔
I	Visibly post the Summary of the Notice of Privacy Practices in all six languages in common patient areas of your treatment facility?		✔
J	Document each disclosure of a patient's/client's health information for purposes other than treatment, payment, or operations?		✔
K	When required by law, have proof that signed authorization for disclosure forms (that meet the requirements of the HIPAA Privacy Rule) are obtained PRIOR to releasing a patient's/client's health information?		✔

III. ATTEST: Under penalty of perjury, I hereby attest that to the best of my knowledge the information herein is true and correct and that I have authority to sign on behalf of and bind Contractor listed above.

ATTESTED by Privacy Officer or designated person	Name: (print)		Signature		Date	

IV. *EXCEPTIONS: If you have answered "NO" to any question or believe a question is Not Applicable, please contact OCPA at **1-855-729-6040** or compliance.privacy@sfdph.org for a consultation. All "No" or "N/A" answers must be reviewed and approved by OCPA below.

EXCEPTION(S) APPROVED by OCPA	Name (print)		Signature		Date	

Contractor Name:	PeriGen Inc.	Contractor City Vendor ID	

DATA SECURITY ATTESTATION

INSTRUCTIONS: Contractors and Partners who receive or have access to health or medical information or electronic health record systems maintained by SFDPH must complete this form. Retain completed Attestations in your files for a period of 7 years. Be prepared to submit completed attestations, along with evidence related to the following items, if requested to do so by SFDPH.

Exceptions: If you believe that a requirement is Not Applicable to you, see instructions in Section III below on how to request clarification or obtain an exception.

I. All Contractors.

	DOES YOUR ORGANIZATION…	Yes	No*
A	Conduct assessments/audits of your data security safeguards to demonstrate and document compliance with your security policies and the requirements of HIPAA/HITECH at least every two years? [Retain documentation for a period of 7 years]		✔
B	Use findings from the assessments/audits to identify and mitigate known risks into documented remediation plans?		
	Date of last Data Security Risk Assessment/Audit:		
	Name of firm or person(s) who performed the Assessment/Audit and/or authored the final report:		
C	Have a formal Data Security Awareness Program?	✔	
D	Have formal Data Security Policies and Procedures to detect, contain, and correct security violations that comply with the Health Insurance Portability and Accountability Act (HIPAA) and the Health Information Technology for Economic and Clinical Health Act (HITECH)?	✔	
E	Have a Data Security Officer or other individual designated as the person in charge of ensuring the security of confidential information?		
	If yes: Name & Title: Bruno Bendavid; Phone #: ; Email:	✔	
F	Require Data Security Training upon hire and annually thereafter for all employees who have access to health information? [Retain documentation of trainings for a period of 7 years.] [SFDPH data security training materials are available for use; contact OCPA at 1-855-729-6040.]	✔	
G	Have proof that employees have signed a form upon hire and annually, or regularly, thereafter, with their name and the date, acknowledging that they have received data security training? [Retain documentation of acknowledgement of trainings for a period of 7 years.]	✔	
H	Have (or will have if/when applicable) Business Associate Agreements with subcontractors who create, receive, maintain , transmit, or access SFDPH's health information?	✔	
I	Have (or will have if/when applicable) a diagram of how SFDPH data flows between your organization and subcontractors or vendors (including named users, access methods, on-premise data hosts, processing systems, etc.)?	✔	

II. ATTEST: Under penalty of perjury, I hereby attest that to the best of my knowledge the information herein is true and correct and that I have authority to sign on behalf of and bind Contractor listed above.

ATTESTED by Data Security Officer or designated person	Name: (print)		Signature		Date	

III. *EXCEPTIONS: If you have answered "NO" to any question or believe a question is Not Applicable, please contact OCPA at **1-855-729-6040** or compliance.privacy@sfdph.org for a consultation. All "No" or "N/A" answers must be reviewed and approved by OCPA below.

EXCEPTION(S) APPROVED by OCPA	Name (print)		Signature		Date	

WatchChild Budget Summary -- Appendix H

Base System	
Services and Training	$70,938.00
Software	$95,162.00
Hardware	$33,643.00
Shipping and Handling (S&H)	$300.00
Sales Tax (8.5%) Hardware, S&H	$2,885.00
Sub-Total	**$202,928.00**
Enhancements	
Services and Training	$45,700.00
Software	$157,026.00
Hardware	$31,211.00
Shipping and Handling	$325.00
Sales Tax (8.5%) Hardware, S&H	$2,681.00
Sub-Total	**$236,943.00**
Additional Products and Services Incurred during the Initial Project	**$24,766.73**
ICR #1 (January 18, 2012)	**$3,313.75**
Grand Total One-Time Costs	**$467,951.48**

Ongoing Estimated Costs -- Years One-Ten for Software Maintenance Agreement (SMA) and Enhanced Services Agreement (ESA) for I
Maintenance 24 hrs/7 Days

Years Two-Ten are the estimated cost or a maximum of 5% per year. Actual Cost may be less.

Year One (2012-2013)	
SMA Base System and Enhancements	$70,918.00
ESA Hardware (Year One under Warranty)	$0.00
Year Two (2013-2014)	
SMA Base System and Enhancements	$74,463.90
ESA Hardware 24x7	$24,560.00
Year Three (2014-2015)	
SMA Base System and Enhancements	$78,187.10
ESA Hardware 24x7	$25,788.00
Year Four (2015-2016)	
SMA Base System and Enhancements	$82,096.45
ESA Hardware 24x7	$27,077.40
NWC System Addition (One-Time Charge ICR #2)	$44,688.00
NWC System Addition (One-Time Charge ICR #3)	$6,375.00
NWC System Addition (One-Time Charge ICR #3)	$4,689.00
NWC Annual Software Maintenance Agreement Addition (ICR #2)	$3,708.00
NWC Annual Software Maintenance Agreement Addition (ICR #3)	$1,575.90
Year Five (2016-2017) - REVISED	
SMA Base System and Enhancements	$87,641.27
ESA Hardware 24x7	$28,431.27
NWC Annual Software Maintenance Agreement Addition (ICR #2)	$3,893.00
NWC Annual Enhanced Service Agreement Addition (ICR #2)	$2,636.00
NWC Annual Software Maintenance Agreement Addition (ICR #3)	$1,654.70
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$700.40
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$526.32

Year Six (2017-2018)	
SMA Base System and Enhancements	$88,644.74
ESA Hardware 24x7	$16,745.83
NWC Annual Software Maintenance Agreement Addition (ICR #2)	$4,088.00
NWC Annual Enhanced Service Agreement Addition (ICR 2)	$2,767.80
NWC Annual Software Maintenance Agreement Addition (ICR #3)	$1,737.43
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$735.42
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$552.64
Year Seven (2018-2019) - REVISED	
Base System and Enhancements	$93,076.97
ESA Hardware 24x7	$17,583.13
NWC Annual Software Maintenance Agreement Addition (ICR #2)	$4,292.00
NWC Annual Enhanced Service Agreement Addition (ICR 2)	$2,906.19
NWC Annual Software Maintenance Agreement Addition (ICR #3)	$1,824.30
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$772.19
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$580.27
NWC System Addition - Epic Deliverable 1	$10,000.00
NWC System Addition - Epic Deliverable 2	$20,000.00
NWC System Addition - Epic Deliverable 3	$25,000.00
NWC System Addition (Virtualization Deliverable 1	$13,187.00
Year Eight (2019-2020)	
SMA Base System and Enhancements	$97,730.82
ESA Hardware 24x7	$18,462.28
NWC Annual Software Maintenance Agreement Addition (ICR #2)	$4,507.00
NWC Annual Enhanced Service Agreement Addition (ICR 2)	$3,051.50
NWC Annual Software Maintenance Agreement Addition (ICR #3)	$1,915.52
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$810.80
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$609.28
Year Nine (2020-2021)	
SMA Base System and Enhancements	$102,617.36
ESA Hardware 24/7	$19,385.40
NWC Annual Software Maintenance Agreement Addition (ICR #2)	$4,732.00
NWC Annual Enhanced Service Agreement Addition (ICR 2)	$3,204.07
NWC Annual Software Maintenance Agreement Addition (ICR #3)	$2,011.29
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$851.34
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$639.75
Year Ten (2021-2022)	
SMA Base System and Enhancements	$107,748.23
ESA Hardware 24x7	$20,354.67
NWC Annual Software Maintenance Agreement Addition (ICR #2)	$4,969.00
NWC Annual Enhanced Service Agreement Addition (ICR 2)	$3,364.28
NWC Annual Software Maintenance Agreement Addition (ICR #3)	$2,111.86
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$893.91
NWC Annual Enhanced Service Agreement Addition (ICR #3)	$671.73
Sub-Total On-Going Support/Maintenance	**$1,206,558.70**
Sales Tax (allowance)	$174,000.00
Subtotal One-Time Deliverable Payments	$68,187.00
Grand Total On-Going Support/Maintenance	**$1,448,745.70**
Optional Software and Services	$0.00
Sub-Total One-Time Costs, Maintenance, and Optional Items	**$1,916,697.18**
Contingency Remaining	$183,302.82
Grand Total Contract Spending Authority	**$2,100,000.00**

CERTIFICATE OF LIABILITY INSURANCE

DATE(MM/DD/YYYY) 09/21/2017

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER
Aon Risk Services Central, Inc.
Philadelphia PA Office
One Liberty Place
1650 Market Street
Suite 1000
Philadelphia PA 19103 USA

CONTACT NAME:
PHONE (A/C. No. Ext): (866) 283-7122 FAX (A/C. No.): (800) 363-0105
E-MAIL ADDRESS:

INSURED
PeriGen, Inc.
116 Village Blvd.
Suite 200
Princeton NJ 08540 USA

INSURER(S) AFFORDING COVERAGE		NAIC #
INSURER A:	Endurance American Specialty Ins Co.	41718
INSURER B:	Federal Insurance Company	20281
INSURER C:	Chubb Insurance Company of New Jersey	41386
INSURER D:		
INSURER E:		
INSURER F:		

COVERAGES **CERTIFICATE NUMBER:** 570068253454 **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

Limits shown are as requested

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
B	X COMMERCIAL GENERAL LIABILITY CLAIMS-MADE X OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: POLICY PRO-JECT LOC OTHER:			3591-27-13	03/01/2017	06/01/2018	EACH OCCURRENCE	$1,000,000
							DAMAGE TO RENTED PREMISES (Ea occurrence)	$1,000,000
							MED EXP (Any one person)	$10,000
							PERSONAL & ADV INJURY	$1,000,000
							GENERAL AGGREGATE	$2,000,000
							PRODUCTS - COMP/OP AGG	
B	AUTOMOBILE LIABILITY ANY AUTO OWNED AUTOS ONLY X HIRED AUTOS ONLY SCHEDULED AUTOS X NON-OWNED AUTOS ONLY			(17)9947-37-79	03/01/2017	06/01/2018	COMBINED SINGLE LIMIT (Ea accident)	$1,000,000
							BODILY INJURY (Per person)	
							BODILY INJURY (Per accident)	
							PROPERTY DAMAGE (Per accident)	
C	X UMBRELLA LIAB X OCCUR EXCESS LIAB CLAIMS-MADE DED RETENTION			79867218	03/01/2017	06/01/2018	EACH OCCURRENCE	$5,000,000
							AGGREGATE	$5,000,000
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR / PARTNER / EXECUTIVE OFFICER/MEMBER EXCLUDED? Y/N N/A (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below						PER STATUTE OTH-ER	
							E.L. EACH ACCIDENT	
							E.L. DISEASE-EA EMPLOYEE	
							E.L. DISEASE-POLICY LIMIT	
A	E&O-Technology			PRO10010721200 Claims Made SIR applies per policy terms & conditions	03/01/2017	06/01/2018	Limit of Liability	$1,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

Watch Child LLC is included as a Named Insured. The City and County of San Francisco, its officers, agents and employees are included as Additional Insured in accordance with the policy provisions of the General Liability and Automobile Liability policies. The General Liability and Automobile Liability policies evidenced herein are Primary and Non-Contributory to other insurance available to an Additional Insured, but only in accordance with the policy's provisions. A Waiver of Subrogation is granted in favor of The City and County of San Francisco, its officers, agents and employees in accordance with the policy provisions of the General Liability, Automobile Liability and Workers' Compensation policies. General Liability Additional Insured Form 80-02-2058 (Rev. 11-09).

CERTIFICATE HOLDER

San Francisco Department of Public Health,
Office of Contracts Management and Compliance
101 Grove Street, Room 410
San Francisco CA, 94102

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Aon Risk Services Central, Inc.

Holder Identifier :

Certificate No : 570068253454

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ACORD®

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
10/06/17

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER
Aon Risk Services, Inc of Florida
1001 Brickell Bay Drive, Suite #1100
Miami, FL 33131-4937

CONTACT NAME: Aon Risk Services, Inc of Florida
PHONE (A/C, No, Ext): 800-743-8130 FAX (A/C, No): 800-522-7514
EMAIL ADDRESS: ADP.COI.Center@Aon.com

INSURER(S) AFFORDING COVERAGE	NAIC #
INSURER A : American Home Assurance Co.	19380
INSURER B :	
INSURER C :	
INSURER D :	
INSURER E :	
INSURER F :	

INSURED
ADP TotalSource FL XXIX, Inc.
10200 Sunset Drive
Miami, FL 33173
L/C/F
E & C Medical Intelligence Inc
2445 Grand Ave
Vista, CA 92081

COVERAGES **CERTIFICATE NUMBER:** 1802205 **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS. LIMITS SHOWN ARE AS REQUESTED.

INSR LTR	TYPE OF INSURANCE	ADDL INSR	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
	COMMERCIAL GENERAL LIABILITY						EACH OCCURRENCE	$
	CLAIMS-MADE OCCUR						DAMAGE TO RENTED PREMISES (Ea occurrence)	$
							MED EXP (Any one person)	$
							PERSONAL & ADV INJURY	$
	GEN'L AGGREGATE LIMIT APPLIES PER:						GENERAL AGGREGATE	$
	POLICY PROJECT LOC						PRODUCTS - COMP/OP AGG	$
	OTHER							$
	AUTOMOBILE LIABILITY						COMBINED SINGLE LIMIT (Ea accident)	$
	ANY AUTO						BODILY INJURY (Per person)	$
	OWNED AUTOS ONLY / SCHEDULED AUTOS						BODILY INJURY (Per accident)	$
	HIRED AUTOS ONLY / NON-OWNED AUTOS ONLY						PROPERTY DAMAGE (Per accident)	$
								$
	UMBRELLA LIAB / OCCUR						EACH OCCURRENCE	$
	EXCESS LIAB / CLAIMS-MADE						AGGREGATE	$
	DED / RETENTION $							
A	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY Y / N ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	N / A	X	WC 026162675 CA	07/01/17	07/01/18	X PER STATUTE / OTH-ER	
							E.L. EACH ACCIDENT	$ 2,000,000
							E.L. DISEASE - EA EMPLOYEE	$ 2,000,000
							E.L. DISEASE - POLICY LIMIT	$ 2,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)
All worksite employees working for E & C MEDICAL INTELLIGENCE INC, paid under ADP TOTALSOURCE, INC's payroll, are covered under the above stated policy.
WAIVER OF SUBROGATION IN FAVOR OF CERTIFICATE HOLDER AS RESPECTS OF JOB PERFORMED BY E & C MEDICAL INTELLIGENCE INC AS REQUIRED BY WRITTEN CONTRACT.

CERTIFICATE HOLDER

E & C Medical Intelligence Inc
100 Regency Forest Drive, Suite 200
Cary, NC 27518

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Aon Risk Services, Inc of Florida

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WAIVER OF OUR RIGHT TO RECOVER FROM OTHERS ENDORSEMENT - CALIFORNIA

This endorsement changes the policy to which it is attached effective on inception date of the policy unless a different date is indicated below.

(The following" attaching clause" need be completed only when this endorsement is issued subsequent to preparation of the policy).

This endorsement. Effective on 10/06/2017 at 12:01 AM, forms a part of Policy No. WC 026162675

Issued to: ADP TotalSource FL XXIX, Inc.
10200 Sunset Drive
Miami, FL 33173
L/C/F
E & C Medical Intelligence Inc
2445 Grand Ave
Vista, CA 92081

By: American Home Assurance Co.

Premium: N/A

We have the right to recover our payments from anyone liable for an injury covered by this policy. We will not enforce our right against the person or organization named in the Schedule. (This agreement applies only to the extent that you perform work under a written contract that requires you to obtain this agreement from us).

You must maintain payroll records accurately segregating the remuneration of your employees while engaged in the work described in the Schedule.

The additional premium for this endorsement shall be Additional Premium Percent% of the California workers' compensation premium otherwise due on such remuneration.

Schedule

Person or Organization
E & C Medical Intelligence Inc
100 Regency Forest Drive, Suite 200
Cary, NC 27518

WC 04 03 06

Countersigned by _____

(Ed. 4-84)

Authorized Representative

Who Is An Insured

Life Science Product Service Contractors (continued)

No person or organization is an **insured** under this provision with respect to any:

- assumption of liability (of another person or organization) by them in a contract or agreement. This limitation does not apply to the liability for damages for injury or damage, to which this insurance applies, that such person or organization would have in the absence of such contract or agreement.
- representation or warranty unauthorized by you.
- reckless or willful violation of any law or regulation.
- chemical or physical change in **your products** made intentionally by the person or organization.

Further, no person or organization from whom you have acquired **your product**, or any container, ingredient or part accompanying, entering into or containing **your product**, is an **insured** under this provision.

Other Persons Or Organizations Pursuant To Contract Or Agreement

Persons or organizations that you are obligated pursuant to a contract or agreement to provide with such insurance as is afforded by this policy are **insureds**.

However, such a person or organization is an **insured** only:

- to the extent such contract or agreement requires the person or organization to be afforded status as an **insured**; and
- for such activities that did not occur, in whole or in part, before the execution of the contract or agreement.

No person or organization is an **insured** under this provision:

A. that is more specifically identified under any other provision of the Who Is An Insured section (regardless of any limitation applicable thereto).

B. with respect to any:

1. assumption of liability (of another person or organization) by them in a contract or agreement. This limitation does not apply to the liability for damages for injury or damage, to which this insurance applies, that such person or organization would have in the absence of such contract or agreement.
2. representation or warranty unauthorized by you.
3. reckless or willful violation of any law or regulation.
4. failure to make adjustments, inspections, services or tests that the person or organization has agreed to make or normally undertakes to make in the regular course of their business in connection with the distribution or sale of **your product**.
5. chemical or physical change in **your product** made intentionally by the person or organization.
6. demonstration, installation, repair or servicing operations, except such operations performed at the person's or organization's premises in connection with the distribution or sale of **your product**.

Other Persons Or Organizations Pursuant To Contract Or Agreement (continued)

7. of **your products** that, after distribution or sale by you, have been labeled or relabeled or used as a container, ingredient or part of any other substance or thing by or for the person or organization.

8. rendering of or failure to render any professional service, advice or instruction regardless of whether or not such service, advice or instruction is ordinary to any **insured**'s profession and regardless of whether or not a claim is made or **suit** is brought by any client or other person or organization. With respect to the rendering of or failure to render a **healthcare service** only, this limitation does not apply to **bodily injury** caused by a defect, deficiency, inadequacy or dangerous condition in **your product** to which this insurance applies.

The limitations described in subparagraphs B.5. through B.7. above do not apply to the extent that:

- you have agreed in a written contract or agreement that such person or organization will provide such operations for you; and
- such written contract or agreement requires the person or organization to be afforded status as an **insured**.

Limitations On Who Is An Insured

A. Except to the extent provided under the Subsidiary Or Newly Acquired Or Formed Organizations provision, no person or organization is an **insured** with respect to the conduct of any person or organization that is not shown as a named **insured** in the Declarations.

B. With respect to any claims-made coverage, no person or organization is an **insured** with respect to any damages, loss, cost or expense arising out of any **circumstance** or any injury, damage, claim or **suit** (whether or not any of the foregoing is a **circumstance**) reported, in whole or in part at any time, to us or an affiliate of ours under any insurance that is antecedent to this insurance.

C. With respect to any claims-made coverage, no specific person or organization is an **insured** with respect to any damages, loss, cost or expense arising out of any:

1. injury, damage, claim or **suit** (whether or not any of the foregoing is a **circumstance**) that is **deemed known** by such person or organization before the later of the:

   a. beginning of the policy period; or

   b. effective date the person or organization first becomes covered under this insurance;

   including any change, continuation or resumption of any such injury or damage at any time.

2. **circumstance** that is **deemed known** by such person or organization before the later of the:

   a. beginning of the policy period; or

   b. effective date the person or organization first becomes covered under this insurance;

   which would reasonably be expected to result in any payment under this insurance.

If any limitation described in paragraph C. above applies to a specific organization, then such limitation also applies to (and therefore this insurance does not apply to) any of such organization's directors, managers (if a limited liability company), members (if a partnership, joint venture or limited liability company), **officers** or partners.